BACK TO AYALA

28 April 2025

CONTRACT OF LEASE RENEWAL

Ms. Mary Grace Dimacali
Cafe Mary Grace
Cafe Mary Grace
Level 1
TriNoma
Quezon City

Dear **Ms. Dimacali:**

This refers to your lease for the operation of your "**CAFE MARY GRACE**" outlet, which will expire on **30 April 2025.**

We shall be glad to renew your lease, subject however to the following amendments and your compliance with the conditions set forth herein:

1. **TERM**: Your lease shall be renewed from **01 May 2025 to 30 April 2026** (the "Renewed Term").

2. **AREA**: **178.59** square meters.

3. **RENT:** Your monthly rent per square meter for the Renewed Term shall be equivalent as follows:

Period	Basic Rent*	Percentage Rent	Minimum Rent*	Sales Quota
01 May 2024 to 30 April 2025	**Php1,400.00**	**5%** of Gross Sales derived from LESSEE's operation	**Php1,900.00**	**Php10,000.00**
01 May 2025 to 30 April 2026	**Php1,515.00**	**5%** of Gross Sales derived from LESSEE's operation	**Php 2,015.00**	**Php10,000.00**

*plus the applicable VAT

4. **ADDITIONAL SECURITY:** For the renewed term, you shall deliver the Additional Security of **Php 123,227.10** as required under the Contract of Lease / Term Sheet on or before the date stated in your statement of account.

New Security Deposit	**Php**	**2,159,153.10**
Less: Existing Security Deposit	**Php**	**2,035,926.00**
Additional	**Php**	**123,227.10**

5. **DEFINITION OF GROSS SALES:** "Gross Sales" shall mean the selling price or total consideration for the sale, whether in cash or on credit, or partly for cash and partly on credit, of goods, wares, food, drinks or other merchandise by the LESSEE, its Consignor, Sub-Lessee or any party in, upon or from the Leased Premises, and the total consideration for the performance of any service or act within the Leased Premises, and the use of any of the facilities thereof, accruing to the LESSEE, its Consignor, Sub-Lessee or any party while remaining or occupying any part of the Leased Premises, regardless of whether such selling price or consideration shall be actually collected or received by the LESSEE, its Consignor or Sub-Lessee. The term shall include cash overages; receipts from gift-wrapping or other services; sale of promotional items; monthly gains from foreign exchange transactions (net of losses to the extent of the gain); deposits not refunded to purchasers, charges for sales on credit; charges for services rendered by other stores or offices of the LESSEE, its Sub-Lessee or Consignor, or for goods, food, wares, drinks, or other merchandise directly or indirectly ordered from or caused by the LESSEE's or Sub-Lessee's or Consignor's establishment in the Leased Premises; online sales or orders received from online platforms which are fulfilled in the Leased Premises whether for delivery or customer pick-up; reimbursements received for damaged goods; local taxes or any other tax and other miscellaneous income. The term shall exclude returns and refunds; recoveries from bad debts on which rent had previously been paid; sales discounts (provided these are separately recorded in the sales invoices and books of accounts); the amount of the value-added tax, sales tax or other similar taxes imposed by the national government as determined under applicable law, when these are recorded separately in the books of accounts of the LESSEE, its Sub-Lessee or Consignor and/or separately billed to their respective customers; service charges actually distributed; and the proceeds from the sale of the LESSEE's, its Sub-Lessee's or Consignor's used fixtures and office equipment which do not form part of their respective inventory and stock-in-trade. There shall be no adjustment of Gross Sales to take into account cash shortages and losses arising from foreign exchange transaction in excess of gain.

6. **CONDUCT OF BUSINESS:** The LESSEE shall at all times, during the term of this lease, conduct its business in a reputable manner in accordance with the urban design quality of the Commercial Center and the business and operating standards of a first-class commercial center. LESSEE shall comply with all laws, ordinances, rules and regulations and issuances promulgated from time to time by national and/or local governments, as well as government agencies and other regulatory bodies. All the government permits, licenses, authorizations

registrations or requirements which are necessary or appropriate for the conduct of business by the LESSEE in the Leased Premises shall be obtained by the LESSEE and shall be maintained by the LESSEE for the duration of the lease term, and all costs and expenses to be incurred in connection with these permits, licenses, authorizations, registrations or requirements shall be for the account of the LESSEE.

7. **LIEN (to replace Personal Property Security Act):**
Unpaid rent and charges payable by the LESSEE to the LESSOR under this Contract shall constitute a preferred lien upon all property found within the Leased Premises to secure payment of all claims LESSOR may have against the LESSEE. For this purpose, LESSOR is hereby authorized to prevent removal of the said properties from the Leased Premises or demand their return from any possessor thereof in the event that the LESSEE shall default in any of its payment obligations under this Contract of Lease, in addition to the exercise of its rights under Article 11 (Termination and its Consequences).

8. **COMPLIANCE WITH RULES:** The LESSEE shall obey and comply with the Construction Guidelines/Tenant Fit-Out Guidelines and House Rules, and with such rules and regulations or circulars as may from time to time be imposed, adopted, introduced or amended by the LESSOR, the person or firm appointed under Article 3.4(g) or the appropriate government agency. The LESSEE acknowledges the right of the Lessor to impose and amend monetary penalties on violations of such rules and regulations, including the Table of Penalties attached hereto as Schedule A, subject to prior notice.

9. **CONDITION OF THE LEASED PREMISES:** The LESSEE agrees to return and surrender the Leased Premises at the expiration or termination of the term of this lease (subject to any extension as may be granted at the sole discretion of the LESSOR) in the same condition as it was found at the commencement of this lease (reasonable wear and tear excepted) or in strip-to-bare condition, without any delay whatsoever. All alterations, additions, improvements, movable fixtures and enhancements made or introduced by the LESSEE in the Leased Premises (including the posters, signages decoration or advertising matters in the Leased Premises or any part of the Commercial Center) shall be demolished, removed or dismantled by the LESSEE, at its own cost, in a strip-to-bare condition and in such a way that it will not cause water leaks, power interruption, damage or destruction to the Leased Premises or any improvements introduced by the LESSOR therein (reasonable wear and tear excepted). Rectification of any damaged portion of the Leased Premises due to the demolition, removal or dismantling shall be at the expense of the LESSEE.

In the event the LESSEE fails to return and surrender the Leased Premises in accordance with this clause, the LESSOR shall have the right but not the obligation to demolish, remove or dismantle all alterations, additions, improvements, movable fixtures and enhancements made or introduced by the LESSEE in the Leased Premises and charge the LESSEE the costs thereof. Furthermore, should the LESSEE initiated the demolition, removal or dismantling and the same was not completed by the expiration or termination of the term of this lease, the LESSEE shall be charged a sum equal to twice the rental to be paid by the LESSEE to the LESSOR for the period during which the LESSEE retains possession of the Leased Premises and fails to restore and vacate the Leased Premises accordingly, which applicable rent shall be automatically deducted from the additional security provided by the LESSEE under Article 4.4.

Notwithstanding the foregoing, the LESSOR shall have the sole option to allow the LESSEE to return and surrender the Leased Premises as-is and retaining all alterations, additions or improvements made or introduced therein without additional compensation due the LESSEE.

All keys giving access to all parts of the Leased Premises and/or the Common Areas (as applicable) shall be returned to the LESSOR.

10. **HOLD-OVER:** If the LESSEE fails to return the Leased Premises to the LESSOR in accordance with Article 7.19, the LESSEE shall pay the LESSOR, as damages, a sum equal to twice the rental to be paid by the LESSEE to the LESSOR for the period during which the LESSEE retains possession of the Leased Premises. The exercise by the LESSOR of its rights under this Article shall not be interpreted as a grant of permission to the LESSEE to continue in possession of the Leased Premises beyond the period allowed herein, and the damages due to the LESSOR hereunder shall be in addition to the damages which may become due to the LESSOR under Article 11.2 (Consequences of Default).

If the Leased Premises are not surrendered within the period allowed herein, the LESSEE shall be responsible to the LESSOR for all damages which the latter may suffer by reason thereof and will indemnify the LESSOR against any and all claims made by any succeeding lessee, resulting from the delay in delivering possession of the Leased Premises to such succeeding lessee, to the extent that such delay is occasioned by the failure of the LESSEE to surrender the premises on time. The LESSOR shall also be entitled to exercise the remedies specified in Article 11.2 (Consequences of Default) hereof.

11. **EVENTS GIVING RISE TO DEFAULT AND TERMINATION:** The following shall be added to the list of events of default under the Contract of Lease: xxx the failure of the LESSEE to comply with the construction timelines set forth in Schedule B, including but not limited to the submission of plans provided in Schedule C.

12. **REMEDIES ARE CUMULATIVE:** All remedies of the LESSOR set forth in this Contract of Lease are non-exclusive and cumulative with any other remedies available at law or equity.

13. **LAW AND VENUE APPLICABLE:** This Contract shall be construed, interpreted and governed by the laws of the Philippines. Each party irrevocably submits to the exclusive jurisdiction of the courts in Makati City for the purpose of enforcing any right or obligation under or arising out of this Contract.

14. **CONFIDENTIALITY:** The LESSOR and LESSEE agree that any exchange of information or documents among the parties in connection with this Contract, including the terms provided hereunder Contract, shall be treated with strict confidentiality and no such information or documents shall be released without the prior written consent of

the other Party, unless such information is required to be disclosed by any law, regulation, court order, or other competent authority. For the avoidance of doubt, certification as to the status of this lease by the LESSOR, as such will be provided to any governmental authority upon the latter's request, shall not be deemed a violation of this clause.

15. INSURANCE (ANNEX B): Prior to construction, LESSEE shall be required to secure appropriate Contractors All Risks Insurance based on the full amount of the construction (with comprehensive third party liability extension at a minimum amount of P2,000,000) for the duration of the entire construction, demolition or renovation works.

Prior to start of operations, LESSEE shall be required to secure: (1) Commercial or Property All Risks Insurance with business interruption extension and (2) Comprehensive General or Third Party Liability cover (i.e. fire, water damage, food poising) with a minimum limit of P2,000,000 to be renewed yearly for the entire duration of the lease. The insurance coverage shall be obtained by the LESSEE from BPIMS or from any Ayala Land Inc. (ALI) accredited insurance companies and shall furnish the LESSOR with copies thereof as well as its subsequent renewals.

Further, the LESSEE undertakes to make all records pertaining to such insurance (including proof of payment) available to the authorized agents of the LESSOR at the Leased Premises for review during office hours on the date scheduled by the LESSOR, or any postponement or resetting thereof.

16. UPDATING OF MERCHANT INFORMATION AND DOCUMENTS (ANNEX B): The LESSEE agrees to submit such documents and/or information as may be reasonably required by the LESSOR pursuant to its Know-Your Customer (KYC) process from time to time. In addition, the LESSEE shall directly and personally inform the LESSOR in writing of any changes in the Merchant Information Sheet or its lease documentary requirements such as, but not limited to, its DTI/SEC/BSP/AMLC registrations. It is understood that the LESSOR shall have the right to solely rely on the information provided by the LESSEE and shall not be liable for any error, non-communication or miscommunication in the information given. In recognition that the LESSOR is subject to and required to comply with legal, regulatory and/or other requirements in respect of Anti-Money Laundering, Counter-Terrorism Financing, KYC as well as other laws and regulations which now or in the future may come into effect (the "Reportorial Requirements"), the LESSEE fully acknowledges that this lease shall be subject to the Reportorial Requirements. The LESSEE consents to the sharing of its personal information, including KYC findings and conduct of verification, among the LESSOR and its Affiliates owning and/or operating other Ayala Malls and/or to governmental authorities and regulatory bodies.

17. SALES MONITORING (ANNEX B): The LESSEE shall, at its own cost, install, connect and maintain a Point of Sale (POS) system within the Leased Premises as specifically described in the House Rules and which must be certified and approved by the LESSOR. The LESSEE shall install upgrades or attach such software, hardware or device in the POS system to facilitate transmission of sales and other information as may be required by the LESSOR. The LESSEE shall likewise ensure compatibility of the POS with the LESSOR's sales monitoring requirements. Without limiting the generality of the foregoing, the LESSEE shall secure the POS system, including upgrades and attachments (if any), from the list of accredited POS providers of the LESSOR attached hereto as Attachment 1 to the Annex B of the Contract of Lease, and enter into a maintenance agreement with the accredited POS provider for the entire duration of this lease. The LESSEE shall furnish a copy of the maintenance agreement to the LESSOR as well as its subsequent renewals.

The LESSOR or its appointed auditor shall have the right to audit the books and records of LESSEE to verify that the POS data or gross sales reported to LESSOR accurately reflect the actual sales made by LESSEE at the Leased Premises.

In addition, the LESSEE shall allow the LESSOR to conduct the "Z" Reading of the cash register machine or point-of-sale terminal. The conduct of "Z" reading will be consistent with the store operating hours of the Commercial Center.

18. FAILURE TO COMMENCE OPERATIONS BY RENTAL COMMENCEMENT DATE (ANNEX B): In the event that the LESSEE fails to commence operations at the Leased Premises by Rental Commencement Date, the LESSOR reserves the right to impose a penalty as set forth in the Table of Penalties in Annex A for every calendar day of non-operations reckoned from the Rental Commencement Date until such time that the LESSEE commences operations thereat. The LESSEE acknowledges and agrees that this penalty is reasonable and necessary to compensate the LESSOR for any losses incurred due to its delay in commencing operations at the Leased Premises. The penalty shall be payable immediately upon demand by the Lessor and shall not prejudice or deemed a waiver of any other right or remedy that may be available to the Lessor, including but not limited to termination of this lease (as applicable) and collection of Rent.

Except as provided above, all other terms and conditions of our Contract of Lease shall remain the same. Terms used herein shall have the same meaning as that provided in our Contract of Lease.

JUN 0 3 2025

Kindly indicate your conformity below and return to us the original and one (1) copy of this letter **not later than** _____. Should we not receive a reply from you with regard to this matter on or before the said date, we will deemed it to mean that you have ACCEPTED and AGREED to all the terms and conditions herein stated. This letter, when signed or deemed accepted by you shall constitute an amendment and addendum to our Contract of Lease and shall form an integral part thereof.

As our valued partner, we take utmost priority in keeping your account updated and ensuring that our correspondences reach you as intended. In this regard, kindly fill up the attached Merchant Information Sheet and return to us together with this renewal letter.

Sincerely,

RUSSELL JAY C. FLORES
Attorney-in-Fact

HILARIAN I. LICAROS
Attorney-in-Fact

CONFORME:
Cafe Mary Grace

Adrian S. Dimacali Date: 6 Jun. '25

Ms. Mary Grace Dimacali
6000000000193

AMENDMENT TO ATTACHMENT 1 OF
ANNEX B OF THE CONTRACT OF LEASE

A. LIST OF ACCREDITED SECURITY AGENCIES

Premium Security & Investigation Agency, Inc.
Safeguard Investigation & Security Co., Inc.
Emirates Security & Maintenance Systems, Inc.
3i International Security Services, Inc.
Corporate Protection Services Phils., Inc.
Veterans Philippine Scout Security Agency
Everbest Security Agency Corp.

B. LIST OF ACCREDITED INSURANCE COMPANY

BPI MS Insurance Corporation
Malayan Insurance Company, Inc.
Pioneer Insurance and Surety Corporation
FPG Insurance Co., Inc. (former Federal Phoenix Assurance Company, Inc.)
AIG Philippines Insurance, Inc.
Starr International Insurance
Chubb (former Ace-INA Insurance)
MAA General Assurance Phils., Inc.
UCPB Gen/CocoGen
Cibeles Insurance Corporation
Paramount Life & General Insurance Corporation
Alliedbankers Insurance Corporation
Liberty Insurance Corporation
Stronghold Insurance Company Inc.
The Mercantile Insurance Co.
Enrique Zobel Insurance (EZI) – Agent only

C. LIST OF ACCREDITED POS PROVIDER (CATEGORY)

Cyber Frontier (Fast-food / Fine Dine)
Syluxent Inc. / Jimac Incorporated (Retail / Fast-food / Fine Dine)
Tills & Labels (Fast-food / Fine Dine)
Ansi Information Systems, Inc. (Retail / Fast-food / Fine Dine)
Eleos – Octopus (Retail / Fast-food / Fine Dine)
Epos (Retail / Fast-food / Fine Dine)
Nelsoft (Retail / Fast-food / Fine Dine)
Point One (Retail / Fast-food / Fine Dine)
Partner Solutions / Retailware (Retail / Fast-food / Fine Dine)
Neutron Systems Trading (Retail / Fast-food / Fine Dine)
Apsoft, Inc. (Retail / Fast-food / Fine Dine)
JI Software Consulting (Retail)
Genie X / Genie Technologies Inc. (Food/ Fine Dine); Genie X / Genie Technologies Inc. (Retail - Rpro V9 & Retail Prism)
Divergent (Retail / Fast-food / Fine Dine)
Iripple (Fast-food)
Compuware (Fast-food / Fine Dine)
New Datche (Retail / Fast-food / Fine Dine)
Alliance (Retail / Fast-food / Fine Dine)
Future Logic Corporation (Raptor); Future Logic Corporation (Krypton) (Fast-food / Fine Dine)
1teq Providers, Inc. (Fast-food / Fine Dine)
Condor Pos Solutions Rp Inc. (Retail / Fast-food / Fine Dine)
Sweda Systems Philippines, Inc. (Retail / Fast-food / Fine Dine)
Performance Advantage Systems Int/ Dynamic Global (Fast-food); Performance Advantage Systems Int / Dynamic Global (Fine Dine); Performance Advantage Systems Int / Dynamic Global (Retail)

**The lists above may be amended by the LESSOR from time to time upon written notice to the LESSEE*

SCHEDULE A
TABLE OF PENALTIES

The imposition of the below penalties shall be in addition to Rent and other remedies that may be available to the LESSOR. For the avoidance of doubt, the penalties may be applied in conjunction with each other. The LESSEE recognizes the sole right of the LESSOR to amend and/or make adjustments to the table of penalties from time to time, subject to prior notice to the LESSEE.

Penalty for Failure to Commence Operations by Rental Commencement Date (RCD)	
Kiosk	₱1,000.00/day
Below 100 sqm	₱5,000.00/day
101 to 200 sqm	₱7,000.00/day
201 to 300 sqm	₱10,000.00/day
301 to 500 sqm	₱15,000.00/day
Above 500 sqm	₱30,000.00/day
Late Store Opening Penalty	
Less than 4 hours	50% of Daily Rate
Above 5 hours	100% of Daily Rate (considered as one day)
POS Penalty (for disconnection and non-connection)	
1st month	Same as penalty for failure to commence operations by RCD
Succeeding months	Double every succeeding month/s
House Rules/Construction/Tenant Fit-Out Guidelines Violation	
First Offense	Written Notice
Second Offense	₱1,500.00
Third Offense	₱3,000.00
Fourth Offense	₱6,000.00
Succeeding Violation	Double every succeeding violation
Fire Safety Violation	₱10,000.00/violation
Method Statement Violation	₱10,000.00/violation
Fire Incident	₱50,000.00/violation
Safety Incident	₱50,000.00/violation

SCHEDULE B
CONSTRUCTION TIMELINES

The LESSEE shall strictly comply with the following schedule, unless such dates are mutually adjusted by the :LESSOR and the LESSEE in writing :

	DATE
Pre-Construction Meeting	
Plan Preparation	
Submission of Plans as provided under Annex C	
Construction Permit Processing	
Start of Construction	
Completion of Construction	
Permit to Open	
Start of Operations	

**The dates above are intentionally left blank as the LESSEE in this case is assumed to have already commenced commercial operations at the Leased Premises.*

SCHEDULE C
LIST OF PLANS FOR SUBMISSION

List of Final Plan Submission:	Merchant		Remarks
	Non-Food	Food	
(a) Colored perspective on 20" x 30" board with key plan at lower righthand corner showing the location of the leased area.	✓	✓	
(b) For all trade drawings, a total of 11 sets to be submitted to include 7 sets for permit application and 4 sets for evaluation, all in A1 sheets (594mm X 841mm).	✓	✓	May vary depending on LGU requirements
(1) Architectural plans and drawings			
Perspective	✓	✓	
Location plan of project and subject lease space	✓	✓	
Floor plans	✓	✓	
Elevations	✓	✓	
Longitudinal and cross sections	✓	✓	
Reflected ceiling plan	✓	✓	
Signage design and detail	✓	✓	
Board-up and graphic design detail	✓	✓	
Equipment layout	✓	✓	
Specifications	✓	✓	
Other relevant drawings	✓	✓	
Note: All architectural plans must be signed and sealed by a registered Architect.			
(2) Structural Plan (If applicable)			
Design, structural computations, and specifications	✓	✓	If applicable
Location and specifications of heavy equipment i.e., its weight, loading, and dimensions (if applicable)	✓	✓	Applicable to merchant's with heavy equipment (e.g. bank vaults, pugon oven, etc.)
Structural design and details	✓	✓	If applicable
Floor framing plans	✓	✓	Applicable to merchant's allowed to construct a mezzanine
Location of wall partitions		✓	Applicable to merchant's allowed to construct CHB partitions (e.g. kitchen, toilets)
Coring and channeling layout	✓	✓	Applicable to merchant's w/ plumbing, drainage and sanitary systems
Other relevant drawings	✓	✓	
Note. All structural plans must be signed and sealed by a registered Civil/Structural Engineer.			
(3) Electrical Plans			
Power equipment and auxiliary plan, showing location of and connection to the stub-out	✓	✓	
Single line diagram	✓	✓	
Lighting plan with illumination specifications	✓	✓	
Detailed electrical design and load schedule computation	✓	✓	
Plans for telephone, POS, and other auxiliary layout plan	✓	✓	
Security/burglar alarm system plan and details, if any	✓	✓	
CCTV system	✓	✓	
Details of electrical equipment (if applicable)	✓	✓	
Technical specifications, legends, and general notes	✓	✓	

Fire Detection & Alarm System Plan including location of Smoke Detector	✓	✓	
Other relevant drawings	✓	✓	
Note: All electrical plans must be signed and sealed by a registered Professional Electrical Engineer.			
(4) Sanitary Plans (if applicable)			
Design and specifications showing location of and connection to the stub-out		✓	
Isometric drawings		✓	
Soil Waste Drainage system	✓	✓	Applicable to Services and Food Merchants
Kitchen Waste Drainage system		✓	
Hot and cold waterline systems	✓	✓	Applicable to Services and Food Merchants
Other relevant drawings	✓	✓	
Note: All plumbing/sanitary plans must be signed and sealed by a registered Sanitary Engineer.			
(5) Mechanical Plans			
Air-conditioning and air ductworks system showing location of and connection to the stub-out	✓	✓	
AC Drainage System	✓	✓	Not applicable to AHU supplied non-food merchant
Ventilation system (if applicable)		✓	
Ductworks systems for kitchen ventilation including kitchen hood (if applicable)		✓	
LPG piping layout (if applicable)		✓	
Isometric drawings	✓	✓	
Specifications	✓	✓	
Equipment catalogs	✓	✓	
Other relevant drawings	✓	✓	
Note: All mechanical plans must be signed and sealed by a registered Professional Mechanical Engineer			
(6) Fire Protection Plans			
Fire protection system showing location of and connection to the stub-out	✓	✓	
Relocated sprinkler heads and piping system	✓	✓	
Location of fire extinguisher	✓	✓	
Automatic kitchen fire suppression system (KFSS) plan		✓	
LPG gas leak detection system plan		✓	
Specifications	✓	✓	
Other relevant drawings	✓	✓	
Note: All fire protection plans must be signed and sealed by a registered Professional Mechanical Engineer.			